

The M.P. Karadhan (Van Vikas Upkar) Rules, 1982

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State of Madhya Pradesh - Act

The M.P. Karadhan (Van Vikas Upkar) Rules, 1982

MADHYA PRADESH

India

The M.P. Karadhan (Van Vikas Upkar) Rules, 1982

Rule THE-M-P-KARADHAN-VAN-VIKAS-UPKAR-RULES-1982 of 1982

Published on 6 July 1983

Commenced on 6 July 1983

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The M.P. Karadhan (Van Vikas Upkar) Rules, 1982

Published vide Notification No. 2651-10-2-83, dated 6-7-1983, M.P. Rajpatra (Asadharan), dated 19-7-1983

The State Government has made these rules under Section 11 (1) of the M.P. Karadhan Adhiniyam, 1982 (No. 15 of 1982) :

1.

Short title and commencement.

(1)

These rules may be called the Madhya Pradesh Karadhan (Van Vikas Upkar) Rules, 1982.

(2)

They shall come into force from the date of their publication in the "Madhya Pradesh Gazette".

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Madhya Pradesh Karadhan Adhiniyam, 1982 (No. 15 of 1982);

(b)

"Cess" means Forest Development Cess;

(c)

"Fund" means Forest Development Fund;

(d)

"Sale price and supply price" in either case means a price (exclusive of sales tax) at which forest produce is ready for sale or supply.

3.

Cess collected by Madhya Pradesh Forest Development Corporation.

- The cess collected by the Madhya Pradesh Forest Development Corporation during the month shall be paid to Principal Chief Conservator of Forests, Madhya Pradesh, through a crossed cheque latest by the 15th of the following month alongwith the details of recovery shown in the form appended to these rules.

4.

Deposit of cess into the Consolidated Fund.

- The cess collected and recovered in accordance with the provision of the Act and these rules, shall be credited to the Consolidated Fund under the head "113-Forest (d) Other receipts-Forest Development Cess."

5.

Withdrawal from the Consolidated Fund.

(1)

The provision shall be made at the commencement of each financial year in the State budget for withdrawal of an amount equivalent to the proceeds of the forest development cess realised by the State Government in the preceding financial year from the Consolidated Fund as a charged expenditure under the head "113-Forest-Transfer from/to Reserve Funds-Transfer to Forest Development Fund."

(2)

The amount withdrawn from the Consolidated Fund in accordance with the provision of sub-section (4) of Section 7 of the Act shall be credited to the Forest Development under the head "829-Development and Welfare Funds-(r) Other Development and Welfare Funds-Madhya Pradesh Forest Development Fund."

6.

Operation of the Fund.

- For utilisation of the purposes specified in sub-section (5) of Section 7 of the Act, necessary provision shall be made in the budget under the heads of accounts "313-Forest" and 513-Capital Outlay on Forest" for expenditure on schemes financed from the fund and the amount meet out from the fund shall be adjusted as recoveries and shown under a direct sub-head "Deduct-Amount met from Forest Development Fund" under the respective major heads.

7.

Interpretation.

- If any question arises relating to the interpretation of these rules, it shall be referred to the State Government whose decision thereon shall be final.

Form

(See Rule 3)

Recovery of Forest Development Cess Collected by the Madhya Pradesh Forest Development Corporation

Month

Value of forest produce sold and supplied in the month

Total amount of Forest Development Cess recovered

Specific details

(1)

(2)

(3)

(4)

Date

Place

Signature.....

Designation.....

To

Principal Chief Conservator of Forests

Madhya Pradesh, Bhopal.

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